

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Benjamin Wurtzel	Team: Squad #02	CCRB Case #: 201607162	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 08/20/2016 7:30 PM	Location of Incident: § 87(2)(b) [REDACTED]	18 Mo. SOL 2/20/2018	Precinct: 66		
Date/Time CV Reported Sat, 08/20/2016 8:26 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 08/20/2016 8:26 PM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Frank Santangelo	05598	959198	066 PCT
2. POM Tomasz Pulawski	05906	949511	066 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Tomasz Pulawski	Abuse: Police Officer Tomasz Pulawski stopped the vehicle in which § 87(2)(b) [REDACTED] was an occupant.	A . Exonerated
B . POM Tomasz Pulawski	Abuse: Police Officer Tomasz Pulawski frisked § 87(2)(b) [REDACTED]	B . Substantiated
C . POM Tomasz Pulawski	Abuse: Police Officer Tomasz Pulawski searched § 87(2)(b) [REDACTED]	C . Substantiated
D . POM Tomasz Pulawski	Abuse: Police Officer Tomasz Pulawski searched the vehicle in which § 87(2)(b) [REDACTED] was an occupant.	D . Substantiated
E . POM Frank Santangelo	Abuse: Police Officer Frank Santangelo searched the vehicle in which § 87(2)(b) [REDACTED] was an occupant.	E . Unfounded
F . POM Tomasz Pulawski	Discourtesy: Police Officer Tomasz Pulawski spoke discourteously to § 87(2)(b) [REDACTED]	F . Unsubstantiated
G . POM Tomasz Pulawski	Abuse: Police Officer Tomasz Pulawski interfered with § 87(2)(b) [REDACTED]'s use of a recording device.	G . Unsubstantiated

Case Summary

On August 20, 2016, § 87(2)(b) filed this complaint with the CCRB via the call processing system.

On August 20, 2016, at approximately 7:30 p.m., a vehicle driven by § 87(2)(b) was pulled over on § 87(2)(b) near the intersection with § 87(2)(b) in Brooklyn, for failing to signal (**Allegation A**). Police Officers Tomasz Pulawski and Frank Santangelo of the 66th Precinct approached the vehicle and Police Officer Pulawski asked § 87(2)(b) to step out of the vehicle after observing a suspected narcotic in the door handle. Police Officer Pulawski patted down the exterior of § 87(2)(b)'s clothing and lifted his shirt (**Allegations B and C**). Police Officer Pulawski then instructed the passengers, § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) to step out of the vehicle and they complied.

Police Officer Pulawski searched the interior of the vehicle (**Allegation D**). § 87(2)(b) alleged that Police Officer Santangelo searched the interior of the vehicle as well (**Allegation E**). After searching the vehicle, the men were allowed to get back inside. § 87(2)(b) informed Police Officer Pulawski that his search was unlawful and Police Officer Pulawski allegedly replied, "You think you're a smartass. I'm going to see you again," (**Allegation F**). § 87(2)(b) was filming the officers with his phone and Police Officer Pulawski allegedly covered his name and shield number with his hand to obstruct § 87(2)(b) from filming his identifying information (**Allegation G**). § 87(2)(b) was issued a summons by Police Officer Pulawski for failing to signal (Board Review 15).

Surveillance video of this incident was obtained from the exterior camera of § 87(2)(b). This video can also be found in IA #36 (Board Review 01).



2016-10-28_16-24-26.mp4

Mediation, Civil and Criminal Histories

§ 87(2)(b) and § 87(2)(b) rejected mediation for this case § 87(2)(b). An inquiry was sent to the Comptroller's Office of the City of New York to determine whether a Notice of Claim has been filed in regards to this incident. The response will be added to the case file upon receipt (Board Review 02). § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) and § 87(2)(b) do not have any prior CCRB complaints (Board Review 05-06).
- Police Officer Pulawski has been a member of the NYPD for six years and has no prior CCRB allegations filed against him (Board Review 07).
- Police Officer Santangelo has been a member of the NYPD for one year and has no prior CCRB allegations filed against him (Board Review 16).

Potential Issues

§ 87(2)(b) expressed that he was unwilling to provide a verified statement for an investigation.

Therefore, a verified statement was not obtained from § 87(2)(b). Furthermore, § 87(2)(b) claimed to have taken a video of the incident with his phone but did not provide the video to the CCRB after multiple telephone conversations and emails.

§ 87(2)(b) scheduled an interview at the CCRB which he did not appear for. § 87(2)(b) did not reply to multiple follow-up telephone calls and letters. Therefore, a verified statement was not obtained from him. Without a verified statement, the investigation could not obtain a more thorough account of this incident from § 87(2)(b).

§ 87(2)(b) was contacted by the investigation and asked to appear at the CCRB to provide a statement. § 87(2)(b) declined to appear at the CCRB, stating that he did not wish to be involved with the complaint. Therefore, a verified statement was not obtained from § 87(2)(b). The investigation made multiple attempts to identify and contact § 87(2)(b) but was unable to do so using multiple databases. Therefore, a verified statement was not obtained from § 87(2)(b).

§ 87(2)(g)

Findings and Recommendations

Allegations not pleaded

Offensive Language: § 87(2)(b) alleged that Police Officer Pulawski made offensive comments to him based on his South Asian ethnicity. § 87(2)(b) could not provide examples of any specific comments made and declined to provide a verified statement. § 87(2)(g)

Allegation A – Abuse of Authority: Police Officer Tomasz Pulawski stopped the vehicle in which § 87(2)(b) was an occupant.

On August 25, 2016, § 87(2)(b) provided a telephone statement to the CCRB (Board Review 08). On August 26, 2016, § 87(2)(b) provided a telephone statement to the CCRB (Board Review 09). On September 6, 2016, § 87(2)(b) provided a telephone statement to the CCRB (Board Review 10). Police Officer Santangelo was interviewed at the CCRB on October 5, 2016. Police Officer Pulawski was interviewed at the CCRB on October 18, 2016.

§ 87(2)(b) acknowledged making a left turn without using his signal and stated that he pulled over when he observed a police vehicle signaling to him. § 87(2)(b) stated that he was sleeping when § 87(2)(b) committed his traffic violation but was told by another occupant of the vehicle that § 87(2)(b) had run a red light. Police Officers Pulawski and Police Officer Santangelo both observed § 87(2)(b) make a left turn onto § 87(2)(b) without signaling.

A vehicle is required to signal an intention to turn right or left during at least the last 100 feet

before turning. Vehicle and Traffic Law Section 1163-B (Board Review 17).

§ 87(2)(g)

it is recommended that **Allegation A be exonerated.**

Allegation B – Abuse of Authority: Police Officer Tomasz Pulawski frisked § 87(2)(b)

Allegation C – Abuse of Authority: Police Officer Tomasz Pulawski searched § 87(2)(b)

Allegation D – Abuse of Authority: Police Officer Tomasz Pulawski searched the vehicle in which § 87(2)(b) was an occupant.

Video footage shows that, during the vehicle stop Police Officer Pulawski frisked § 87(2)(b) lifted his shirt, and conducted a search of the interior of his vehicle (See video 2016-10-28_16-24-26.mp4 above).

§ 87(2)(b) stated that he had a discarded wrapper from a piece of Winter Fresh gum in his center console and that Police Officer Pulawski pointed to this and asked to know what it was at the time of the traffic stop. § 87(2)(b) alleged that he and the other passengers were ordered to exit after he told Police Officer Pulawski that the wrapper was “nothing.” § 87(2)(b) further alleged that he observed Police Officer Pulawski enter the interior of his vehicle and open the glove compartment. § 87(2)(b) did not allege that Police Officer Pulawski frisked or searched him.

§ 87(2)(b) alleged that Police Officer Pulawski ordered all four men out of the vehicle and Police Officer Pulawski and Police Officer Santangelo both entered the vehicle and conducted a search of the interior, including looking into the glove compartment. § 87(2)(b) did not allege that Police Officer Pulawski conduct a frisk or search of any of the vehicle occupants. § 87(2)(b) confirmed that he was ordered out of the car with the other vehicle occupants but did not provide additional information.

Police Officer Pulawski stated that § 87(2)(b) did not pull his vehicle over to the side of the road until he had driven a half block with Police Officer Pulawski behind him flashing his lights and sounding his sirens. Police Officer Pulawski further stated that he observed “commotion” from the passengers inside of § 87(2)(b) s vehicle as he pulled the vehicle over. Police Officer Pulawski described the “commotion” as rear passengers turning to look out of the back window and the movement of shoulders as the men in the vehicle adjusted their upper bodies. Police Officer Pulawski stated that § 87(2)(b) appeared nervous when he first approached the vehicle and that § 87(2)(b) quickly moved his arm towards the left door ledge which Police Officer Pulawski regarded as a nervous gesture. Police Officer Pulawski observed a small, cut pill in the door ledge which he believed could have been a controlled substance such as Xanax or Aperol. Police Officer Pulawski further observed what he described as a small square of tin foil in the center console. Police Officer Pulawski stated that, in his experience, tin foil can be used to facilitate the illicit use of drugs, including pills. Police Officer Pulawski did not observe any possible drug residue on the foil.

Police Officer Pulawski stated that he asked § 87(2)(b) to step out of the vehicle because he believed that the pill and the tin foil constituted evidence of a controlled substance inside of the

vehicle. Police Officer Pulawski stated that he removed the pill from the door pocket and replaced it after examining it. Police Officer Pulawski could not determine what the pill was during his examination and did not learn what the pill was during the traffic stop. Police Officer Pulawski stated that § 87(2)(b) informed him that he shared the vehicle and that the pill belonged to another driver. Police Officer Pulawski smelled alcohol at the time of the vehicle stop but did not cite this as a reason for asking § 87(2)(b) to step out of the vehicle and did not take any further action in regards to it.

Police Officer Pulaski stated that the fabric of § 87(2)(b)'s waistband was folded over and that this indicated to him that something was inside of his waistband. Police Officer Pulaski could not cite a specific object that might have been concealed and stated that it could have been one of multiple weapons including a razor, a gun, or a crowbar. Police Officer Pulawski stated that the folded fabric above § 87(2)(b)'s waistband, the delay between him initiating a vehicle stop and § 87(2)(b) pulling over, and the perceived furtive movements in the rear of the vehicle, gave him reason to believe that a weapon existed either on § 87(2)(b)'s person or inside of the vehicle. Police Officer Pulawski asked § 87(2)(b) if there was anything he should know about and § 87(2)(b) replied that there was alcohol in the car and nothing else that Police Officer Pulawski needed to know about. § 87(2)(b) further stated that Police Officer Pulawski "could check" which Police Officer Pulawski took as consent to search both § 87(2)(b) and his vehicle. Police Officer Pulawski did not ask § 87(2)(b) any questions about the location of the alcohol, whether it was opened or closed and never observed any alcohol in the car.

Police Officer Pulawski stated that he patted down the outside of § 87(2)(b)'s clothing, citing his concern for his safety due to the aforementioned observations. The frisk of § 87(2)(b) determined that there were objects in his pockets but they did not meet the physical profile of a weapon. Police Officer Pulawski did not know what these objects were because he did not remove them. Police Officer Pulawski asked § 87(2)(b) to lift his own shirt so that he could see his waistband and § 87(2)(b) complied. Police Officer Pulawski further stated that he conducted a search of the interior of § 87(2)(b)'s vehicle after asking the other three occupants to step outside and denied opening any interior compartments including the glove box. Police Officer Pulawski stated that the extent of his search was leaning into the front of the vehicle and looking under the dashboard.

Police Officer Santangelo made no mention of observing suspicious physical movements or behavior by vehicle passengers as § 87(2)(b)'s vehicle was being pulled over. Police Officer Santangelo confirmed that Police Officer Pulawski placed a small, white pill on the roof of the vehicle. Police Officer Santangelo did not observe the pill inside of the vehicle himself and did not know how it came to be in Police Officer Pulawski's possession. Police Officer Santangelo first became aware of the pill when Police Officer Pulawski placed it on the roof of the vehicle.

Police Officer Santangelo stated that § 87(2)(b) stepped out from the vehicle "for safety" but stated that the decision was made by Police Officer Pulawski and that he did not feel unsafe during the stop. Police Officer Santangelo did not observe any bulges on § 87(2)(b)'s clothing as he stepped out of the vehicle. Police Officer Santangelo stated that § 87(2)(b) was not searched and that he did not know whether § 87(2)(b) was frisked. Police Officer Santangelo confirmed that Police Officer Pulawski searched § 87(2)(b)'s vehicle but did not know where he looked or whether he opened interior compartments. Police Officer Santangelo did not know why Police Officer Pulawski was looking into the vehicle.

Video of this incident indicates that Police Officer Pulawski lifted something from the driver's side floor of the vehicle and placed it on the roof of the car (See video 2016-10-28_16-24-26.mp4 above). The video further indicates that Police Officer Pulawski patted down the exterior of § 87(2)(b)'s clothing and briefly lifted and dropped the front of his shirt. The video shows that Police Officer Pulawski leaned into § 87(2)(b)'s vehicle through the open driver's door but did not show the full extent of his actions inside of the car. When shown video of the incident, Police Officer Pulawski admitted to it showing him lifting § 87(2)(b)'s shirt but stated that he had no recollection of performing this action.

An officer can frisk an individual for weapons if the officer has reasonable suspicion to believe that the suspect is armed. People v. De Bour, 40 N.Y. 2d 210 (1976) (Board Review 12). Once the limited intrusion of a protective frisk fails to reveal a weapon and the basis for the officer's fear for his safety has abated, the officer may not search an individual. People v. Rodriguez, 856 N.Y. 2d [Sup. Bronx] (2008) (Board Review 13). A warrantless search of a vehicle is permitted when the police have probable cause to believe the vehicle contains contraband, a weapon, or evidence of a crime. People v. Vargas, 89 N.Y.S. 2d 931 (2011) (Board Review 14). During a vehicle stop, the occupants' innocuous movements do not, in themselves, suggest they are armed. Further, once officers remove them from the vehicle, they no longer pose a threat to their immediate safety. People v. Chann, 221, A.D.2d 155 (1995) (Board Review 18).

In a similar incident reviewed by the courts in People v. Guzman, 153 A.D.2d 320 (1990) (Board Review 19), officers pulled over a vehicle for speeding, subsequently suspected narcotics because of "furtive movements" by the occupants, removed the driver from the vehicle, and questioned him about the suspected narcotics. The driver told the officers that they could "take a look in [the] vehicle." The court ruled that the defendant's consent was not voluntary where he was removed from the vehicle, separated from his companions, interrogated about subjects unrelated to the speeding violation, and not advised of his right to refuse to consent and therefore that the purported consent was invalid. Furthermore, the subsequent search of the vehicle was further deemed improper due to the fact that the scope of the purported consent did not amount to consent to search the whole vehicle.

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED] it is recommended that **Allegations B, C, and D** be substantiated.

Allegation E – Abuse of Authority: Police Officer Frank Santangelo searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) alleged that Police Officer Santangelo also searched the interior of § 87(2)(b)'s vehicle. § 87(2)(b) stated that only Police Officer Pulawski looked into his vehicle. Police Officer Pulawski confirmed that only he searched the interior of § 87(2)(b)'s vehicle and Police Officer Santangelo denied searching the vehicle himself. Video of the incident shows that Police Officer Santangelo did not search § 87(2)(b)'s vehicle.

§ 87(2)(g)
[REDACTED]
[REDACTED] it is recommended that **Allegation E** be unfounded.

Allegation F – Discourtesy: Police Officer Tomasz Pulawski spoke discourteously to § 87(2)(b)

Allegation G – Abuse of Authority: Police Officer Tomasz Pulawski interfered with § 87(2)(b)'s use of a recording device.

§ 87(2)(b) stated that he told Police Officer Pulawski that his search of § 87(2)(b)'s vehicle was

unlawful. § 87(2)(b) alleged that Police Officer Pulawski replied to him by saying, “You think you’re a smartass. I’m going to see you again.” § 87(2)(b) further stated that he was filming the officers after Police Officer Pulawski had him and the other occupants exit the vehicle. § 87(2)(b) attempted to film Police Officer Pulawski’s name and shield number off of his uniform and Police Officer Pulawski allegedly covered this information with his hand and turned away.

§ 87(2)(b) and § 87(2)(b) denied hearing Police Officer Pulawski make discourteous comments towards § 87(2)(b) and did not allege seeing Police Officer Pulawski obstruct his uniform in any way during the incident.

Police Officer Pulawski confirmed that he observed § 87(2)(b) filming during the incident and stated that he asked § 87(2)(b) to put his camera away when he asked him and the other passengers to exit the vehicle. Police Officer Pulawski stated that § 87(2)(b) continued to film and that he did not tell him again to put his camera away. Police Officer Pulawski confirmed that § 87(2)(b) was verbally combative and told Police Officer Pulawski that he was not allowed to do what he was doing. Police Officer Pulawski denied making discourteous comments to § 87(2)(b) and denied using profanity. Police Officer Pulawski did not say that he communicated with § 87(2)(b) other than to tell him to put his phone away. Police Officer Pulawski denied obstructing his uniform in any way.

Police Officer Santagelo denied seeing his partner obstruct his shield in any way and denied hearing Police Officer Pulawski make the above statement or use any profanity.

§ 87(2)(g)

It is therefore recommended that **Allegations F and G be unsubstantiated.**

Squad: 2

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date